

SENATE No. 1074

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to update proof of age documentation.

PETITION OF:

NAME:

Peter J. Durant

DISTRICT/ADDRESS:

Worcester and Hampshire

SENATE No. 1074

By Mr. Durant, a petition (accompanied by bill, Senate, No. 1074) of Peter J. Durant for legislation to update proof of age documentation. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 990 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to update proof of age documentation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 33A of Chapter 207 of the General Laws, as so appearing in the 2022 Official
2 Edition, is hereby amended by striking out Section 33A and inserting in place thereof the
3 following section:-

4 Section 33A. The clerk or registrar shall not issue a certificate under section 28 before
5 receiving proof of age of the parties and verifying that both parties are not less than 18 years of
6 age. Such proof shall be contained in any of the following documents, graded and taking
7 precedence in the following order: (i) a passport issued by the United States of America; (ii) a
8 driver's license or identification card issued by any of the states of the United States of America,
9 or, its territories, districts, or commonwealths; (iii) an original or certified copy of a record of
10 birth; (iv) an original or certified copy of a baptismal record; (v) a life insurance policy; (vi) an

11 employment certificate; (vii) a school record; (viii) an immigration record; (ix) a naturalization
12 record; or (x) a court record. The clerk or registrar shall not accept documentary evidence of a
13 lower grade unless the clerk or registrar is satisfied that evidence of a higher grade is not readily
14 procurable.